

to 1931, and the corresponding enactments in force in Northern Ireland;

“Investments” includes interests in land, except that, in relation to any dwelling-house, it does not include any interest which belongs to a person who is residing therein;

“Wounds or disability pension” means any retired pay or pension to which section sixteen of the Finance Act, 1919, applies.

9 & 10
Geo. 5. c. 32.

Short title,
citation,
duration
and extent.

2.—(1) This Act may be cited as the Transitional Payments (Determination of Need) Act, 1932, and shall be included among the Acts which may be cited together as the Unemployment Insurance Acts, 1920 to 1932.

(2) This Act shall not extend to Northern Ireland.

(3) This Act shall continue in force as long as the Unemployment Insurance Act, 1930, remains in force and no longer.

20 & 21
Geo. 5. c. 16.

CHAPTER 55.

An Act to amend the law with respect to appeals from decisions of official referees, to amend in certain particulars the Supreme Court of Judicature (Consolidation) Act, 1925, and section thirty-eight of the Solicitors Act, 1932, and to make provision for the costs of applications under section eighty-four of the Law of Property Act, 1925. [17th November 1932.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Appeals
from
decisions of
official
referees.

1.—(1) As from the date on which this section comes into operation, the following provisions shall have effect with respect to appeals from decisions of official referees in causes, matters, questions and issues which have been ordered under section eighty-nine of the

Supreme Court of Judicature (Consolidation) Act, 1925 (in this Act referred to as "the principal Act"), to be tried before an official referee :—

15 & 16
Geo. 5. c. 49.

- (a) An appeal shall lie to the Court of Appeal from any decision of an official referee on a point of law :
- (b) Subject as aforesaid no decision of an official referee shall be called in question either by appeal or otherwise, and section ninety-four of the principal Act (which provides for the stating in the form of a special case of any question of law arising in the course of a reference) shall cease to have effect in relation to official referees.

(2) This section shall come into operation on such date as the Lord Chancellor may by order direct.

(3) Nothing in this section shall affect any appeal in respect of which notice of motion is served before the date on which this section comes into operation.

2.—(1) Notwithstanding anything in section twenty or any other of the provisions of the principal Act, the High Court shall have jurisdiction to make a grant of probate or administration in respect of a deceased person notwithstanding that the deceased person left no estate.

Power to
grant
probate or
administra-
tion where
no estate.

(2) In subsection (2) of section one hundred and fifty-six of the principal Act (which relates to calendars of grants made in Probate Registries) the words "if any" shall be added after the words "value of the estate."

3. The following paragraph shall be added at the end of subsection (3) of section one hundred and fifty-two of the principal Act (which provides for the filing in the principal probate registry of the notices of applications made in district probate registries for grants of probate or administration) :

Amendment
of s. 152
of the
principal
Act.

"The President of the Probate Division may from time to time give directions for the disposal whether by destruction or otherwise, of such of the notices kept in the principal Probate Registry in pursuance of this subsection as have, in his opinion, ceased, owing to lapse of time, to be of any public value."

Amendment
of s. 174
of the
principal
Act.

4. In subsection (1) of section one hundred and seventy-four of the principal Act (which makes provision with respect to the seal to be used in Probate Registries) the words "such seal or seals" shall be substituted for the words "such seal."

Amendment
of 22 & 23
Geo 5. c. 37.
s. 38.

5. Section thirty-eight of the Solicitors Act, 1932 (which gives to the Registrar of Solicitors and, on appeal, to the Master of the Rolls a discretion as to issuing a practising certificate in certain cases, including the case where a solicitor applies for a practising certificate having neglected so to do for twelve months after the expiration of the last certificate issued to him) shall have effect and shall be deemed always to have had effect as if for the words therein "having neglected so to do for twelve months" there were substituted the words "having neglected to obtain such a certificate within twelve months."

Costs of
applications
under
15 & 16
Geo. 5.
c. 20. s. 84.

6. The following subsection shall be added at the end of section eighty-four of the Law of Property Act, 1925 (which gives the Authority, as defined in that section, power on application to discharge or modify restrictive covenants affecting land):—

"(13) The costs of and incidental to every application to the Authority under this section shall be in the discretion of the Authority, who may direct by whom and to whom and in what manner the costs or any part thereof are to be paid, and may either tax the amount of the costs directed to be paid or direct in what manner they are to be taxed."

Short title.

7. This Act may be cited as the Administration of Justice Act, 1932.